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Luna v. American Honda Motor Co.,
Inc.

25STCV26809

Demurrer of American Honda to Complaint

Motion of American Honda to Strike

Tentative Ruling

The demurrer is sustained in part
(with leave to amend) and overruled in part.

The motion to strike is denied.

Background

This case arises out of the
purchase of a pre-owned 2021 Honda Pilot (the "Vehicle") by Adolfo Bedolla Luna
("Plaintiff").

On September 8, 2025, Plaintiff filed
the complaint in this action against America Honda Motor Co. Inc.
("Defendant") and Does 1 through 10, asserting causes of action for: (1) violation
of subdivision (d) of Civil Code section 1793.2; (2) violation of
subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3)
of Civil Code section 1793.2; (4) breach of the implied warranty of

merchantability (Civil Code sections 1791.1, 1794, & 1795.5); and (5)
fraudulent inducement - concealment.

On April 1 and 13, 2026,
Defendant filed this demurrer and motion to strike. Plaintiff filed oppositions on May 19, and
Defendant filed replies on June 23.

The hearing was initially
scheduled for June 2 but was continued on several occasions.

Trial is set for January 24, 2028.

Legal Standard

Demurrer

Code of Civil Procedure section 430.10
provides:

“The party against whom a complaint or
cross-complaint has been filed may object, by demurrer or answer as provided in
Section 430.30, to the pleading on any one or more of the following grounds:

...

(e) The pleading does not state
facts sufficient to constitute a cause of action. ...”

A general demurrer under Code of Civil
Procedure section 430.10, subdivision (e), tests whether the complaint states a
cause of action. (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388; Hahn v.
Mirza (2007) 147 Cal.App.4th 740, 747; see
also 1 Weil & Brown, California Practice Guide: Civil Procedure Before
Trial [2025], ¶ 7:40.)

“We treat the demurrer as admitting all
material facts properly pleaded, but not contentions, deductions or conclusions
of fact or law. We also consider matters which may be judicially
noticed.” (Centinela Freeman Emergency Medical Associates v. Health
Net of California (2016) 1 Cal.5th 994, 1010; Blank v.

Kirwan (1985) 39 Cal.3d 311, 318; accord *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924; *Marina Pacific Hotel and Suites v. Fireman's Fund Insurance Company* (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Marina Pacific Hotel and Suites*, supra, 81 Cal.App.5th at p. 104.) Even "improbable" facts alleged in the pleading must be accepted as true. (*Marina Pacific Hotel and Suites*, supra, 81 Cal.App.5th at pp. 104-105.)

Courts must "liberally construe the pleading" and "give the complaint a reasonable interpretation, reading it as a whole and its parts in context." (*Id.* at p. 105.)

A complaint must contain a "statement of facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1); see also *C.A. v. William S. Hart High School Dist.* (2012) 53 Cal.4th 861, 872 ["the complaint need only allege facts sufficient to state a cause of action"].) Ordinarily, a complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Ultimate facts are those upon which "the right to recover depends" and are "essential" to the cause of action. (*Estes v. Eaton Corp.* (2020) 51 Cal.App.5th 636, 643 fn. 2; see also 1 Weil & Brown, supra, ¶ 6:124.)

A plaintiff is required to plead only "the essential facts of [its] case" that are sufficient "to acquaint a defendant with the nature, source and extent of [the] cause of action." (*Doe*, supra, 42 Cal.4th at p. 550.) Mere boilerplate or pleading of legal conclusions is not sufficient. (*Id.* at p. 551 fn. 5.) But a plaintiff need not allege "each evidentiary fact that might eventually form part of plaintiff's proof" at trial. (*C.A.*, supra, 53 Cal.4th at p. 872.)

A demurrer can be sustained only when it disposes of an entire cause of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (Centinela Freeman, *supra*, 1 Cal.5th at p. 1010; Blank, *supra*, 39 Cal.3d at p. 318; Shaeffer v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Motion to Strike

Under Code of Civil

Procedure section 435, “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1).)

Code of Civil Procedure

section 436 provides:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code Civ. Proc., § 436.)

In ruling on a motion to

strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

Discussion

Demurrer

Defendant demurs

on the following grounds: (1) Defendant demurs to the First, Second, and Third Causes of Action on the ground that the Vehicle was not a “new motor vehicle”

at the time of sale; (2) Defendant demurs to the Fourth Cause of Action on the ground that it was not a retailer and therefore cannot be held liable for breach of an implied warranty of merchantability; and (3) Defendant demurs to the Fifth Cause of Action on the grounds that Plaintiff does not allege, with sufficient particularity, a duty to disclose, a transactional relationship, actionable concealment, or injury.

First, Second, and Third Causes of Action
(for violations of Civil Code Section 1793.2)

The First, Second, and Third Causes of Action in the Complaint are all brought under the Song Beverly Consumer Warranty Act (the “Act”), and specifically under various subdivisions of Civil Code section 1793.2.

Section 1793.2 applies to “[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty.” (Civ. Code, § 1793.2, subd. (a).) The Act defines “consumer goods,” in pertinent part, as “any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes.” (Civ. Code, § 1791, subd. (a).) In Civil Code section 1793.22, the Act further provides that for purposes of subdivision (d) of section 1793.2, a “new motor vehicle” is defined to include “a dealer-owned vehicle and a ‘demonstrator’ or other motor vehicle sold with a manufacturer’s new car warranty.” (Civ. Code, § 1793.22, subd. (e)(2).)

Plaintiff’s First Cause of Action is brought under subdivision (d) of section 1793.2. That subdivision requires (among other things, and subject to certain limitations) that a manufacturer of a new motor vehicle must replace the vehicle or refund the purchase price if, after a reasonable number of attempts, the manufacturer or its representative is unable to service or repair the vehicle to conform to the applicable express warranties.

In *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198-200, our Supreme Court held that a used vehicle that is purchased in a private transaction is not a “new motor vehicle” under section 1793.22, subdivision (e)(2), even if it still covered by unexpired portions of the manufacturer’s original new car warranty. The facts alleged in the Complaint here are a little different than those in *Rodriguez*: the Plaintiff here

alleges that he purchased a Certified Pre-Owned vehicle covered by a Certified Pre-Owned warranty. (Compl., ¶¶ 6-7 & Exh. A.) Still, however, the reasoning of Rodriguez applies. The Vehicle was not a “new motor vehicle” as that term is defined in section 1793.22, subdivision (e)(2). The Vehicle was sold with a warranty, but not a “new car warranty.” The warranty was a Certified Pre-Owned Warranty – a used car warranty.

Accordingly, the demurrer to the First Cause of Action is sustained, with leave to amend.

Plaintiff's Second and Third Causes of Action are brought under subdivisions (b) and (a)(3) of Civil Code section 1793.2. These causes of action are not limited to “new motor vehicles,” and the definition of that term set forth in section 1793.22, subdivision (e)(2) does not apply. Nonetheless, all of section 1793.2 applies only to “consumer goods,” and, as noted above, that term is defined as a “new product” – which is not a broad enough term to include used goods.

In Civil Code section 1795.5, however, the Legislature provided that, subject to certain exceptions,

“Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean ‘new’ goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers”

(Civ. Code, § 1795.5.)

Thus, causes of action under section 1793.2, subdivisions (a)(3) and (b) may be brought against a “distributor or retail seller” of a used vehicle. As Defendant is alleged to be a distributor (Compl., ¶¶ 4, 6), Plaintiff has in the Complaint stated facts sufficient to withstand Defendant's demurrer to these causes of action.

The demurrer to the Second and Third Causes of Action is overruled.

Fourth Cause of Action (Breach of Implied
Warranty of Merchantability)

Defendant argues that Plaintiff does not allege in his complaint that Defendant was a retailer and that, absent such an allegation, Defendant cannot be held liable for breach of an implied warranty.

In his Opposition, Plaintiff does not respond to this argument. In this context, the Court construes Plaintiff's silence as a concession that the demurrer to this cause of action is well taken.

Accordingly, the demurrer to the Fourth Cause of Action is sustained with leave to amend.

Fifth Cause of Action (Fraudulent Inducement – Concealment)

"One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers." (Civ. Code, § 1709.)

The Civil Code recognizes four types of fraud: (1) an intentional misrepresentation; (2) a negligent misrepresentation; (3) concealment; and (4) promissory fraud. (Civ. Code, § 1710.)

The elements of a cause of action for fraudulent concealment are:

"(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact."

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 140; see also Boschma v. Home Loan Center (2011) 198 Cal.App.4th 230, 248; Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.) "California

case law ... has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation.” (Rattagan, *supra*, 17 Cal.5th at p. 39.)

In support of its demurrer, Defendant makes essentially three arguments: (1) that Plaintiff fails to plead the fraud claim with particularity, (2) that Defendant had no duty to disclose, and (3) that the claim is barred by the economic loss doctrine.

Required Particularity

A plaintiff must plead fraud with particularity. (Robinson Helicopter Co. v. Dana Corp. (2004) 34 Cal.4th 979, 993; Lazar v. Super Ct. (1996) 12 Cal.4th 631, 645; Glaski v. Bank of America (2013) 218 Cal.App.4th 1079, 1090-1092.) This rule applies to causes of action for fraudulent concealment. As our Supreme Court has explained:

“If the duty [to disclose] allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts ..., the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.”

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 347.)

“[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] ... are insufficient.” (Ibid; see also Rattagan, *supra*, 17 Cal.5th at pp. 43–44.)

In the Complaint here, Plaintiff alleges that there were defects with the Vehicle's defective integrated in-vehicle communication, navigation, and entertainment system — commonly referred to as an “infotainment system.” (Compl., ¶ 46.) Plaintiff alleges that Defendant acquired its knowledge of the defect through sources not available to consumers including “pre-production and post-production testing,

numerous customer complaints, warranty claims data compiled from Honda's network of dealers, testing conducted by Honda in response to these complaints, as well as warranty repair and part replacements data received by Honda from Honda's network of dealers, amongst other sources of internal information." (Comp., ¶ 49.) Plaintiff alleges that he is a reasonable consumer who relied on Defendant and its dealerships and would not have purchased the Vehicle had he known of the defect. (Comp., ¶ 59.) Plaintiff alleges that Defendant knew of the defect and its safety risks prior to the sale of the Vehicle and concealed them before and at the time of the sale and repair. (Comp., ¶ 54.)

Based on these allegations (and others in the Complaint), the Court concludes that Plaintiff has alleged his fraud cause of action with sufficient particularity.

Duty to Disclose

Fraudulent concealment is actionable only when there is a duty to disclose.

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."

(Rattagan, *supra*, 17

Cal.5th at pp. 40–41 [citations omitted]; see also, e.g., *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312; *SCC Acquisitions v. Central Pacific Bank* (2012) 207 Cal.App.4th 859, 860; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336–37.)

Defendant

argues that the Complaint does not allege facts sufficient to support a duty to disclose. But, interpreting the Complaint liberally, and drawing all reasonable inferences in favor of the pleading, Plaintiff does allege that Defendant had exclusive access to nonpublic knowledge about the defects. (Compl., ¶¶ 49-54.)

In addition, California law has long recognized that a seller “has a duty to disclose material facts not only to immediate purchasers but also to subsequent purchasers when the [seller] has reason to expect that the item will be resold.” (*OCM Principal Opportunities Fund v. CIBC World Markets Corp.* 157 Cal.App.4th 835, 859 [sale of securities]; accord *Geernaert v. Mitchell* (1995) 31 Cal.App.4th 601, 605–09 [real estate]; *Barnhouse v. City of Pinole* (1982) 133 Cal.App.3d 171, 192–93 [real estate]; cf. *Restatement (Second) of Torts*, § 533 [recognizing that a fraud cause of action can be based on an indirect misrepresentation].)

The recently decided case cited

by Defendant, *Bjoin v. J-M Manufacturing Co.* (2025) 113 Cal.App.5th 884, is not to the contrary. In *Bjoin*,

our Court of Appeal reaffirmed and applied the general rule that there is no duty to disclose between a defendant and “the public at large.” (113 Cal.App.5th at pp. 902-904.) But that is not what Plaintiff is alleging

here. Rather, Plaintiff sufficiently

alleges not a direct transaction with Defendant but an indirect transaction, in which Defendant distributed the vehicle, with the understanding and reasonable expectation that the Vehicle, with Defendant's warranty, would be sold to a consumer (such as Plaintiff) through Defendant's distribution network. (See, e.g., Compl., ¶¶ 4, 6-7.) Accordingly, the requirement of a relationship giving rise to a duty to disclose is, at least as a matter of pleading, satisfied here.

The Court notes that it has

reviewed, but has not relied on, the Court of Appeal decision in *Dhital v.*

Nissan North America (2022) 84 Cal.App.5th 828. This case plainly supports the position of Plaintiff, but it is unclear whether it is good law: our Supreme Court granted review, held the case, and then dismissed the review and remanded after the decision in Rattagan, *supra*.

Plaintiff sufficiently alleges a basis for a duty to disclose.

Economic
Loss Rule

Defendant also argues that Plaintiff's fraudulent concealment cause of action is barred by the "economic loss rule" or is otherwise not sufficiently distinct from a contract or breach of warranty cause of action. Plaintiff alleges, however, that he was induced to enter into a contract based on fraudulent concealment of material facts; such a cause of action remains viable even if Plaintiff either did allege or could have alleged a cause of action for breach of contract or breach of express warranty. As our Supreme Court recently explained in Rattagan, "the economic loss rule does not apply to limit recovery for intentional tort claims like fraud." (Rattagan, *supra*, 17 Cal.5th at p. 38.) Although Rattagan does limit, to some extent, the availability of tort remedies for fraud "in the performance of a contract" (*Ibid.*), it does not limit tort remedies when the cause of action is "for fraudulent inducement" (*Id.* at p. 41.)

"Fraudulent inducement of contract ... is not a context where the traditional separation of tort and contract law obtains. ... [W]here a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for fraud."

(*Id.* at p. 41 [quoting Lazar, *supra*, 12 Cal.4th at p. 645].)

As Plaintiff's fraud cause of action for fraudulent inducement, not fraud in the performance of a contract, the Rattagan decision affirms, rather than limits, the ability of Plaintiff to proceed in tort on his fraudulent concealment cause of action.

The demurrer to the Fifth Cause of Action
is overruled.

Motion
to Strike

Defendant
moves to strike all references to punitive damages. This motion is denied for two independent
reasons.

First,
procedurally, Defendant fails to state specifically what portions of the
Complaint it seeks to strike. A general
description is not sufficient.

Second, even
if the Court were to reach the merits, the Court would still deny the motion. To recover punitive damages in a tort
action, Civil Code section 3294 requires a plaintiff to prove by clear and
convincing evidence “that the defendant has been guilty of oppression, fraud,
or malice.” (Civ. Code, § 3294, subd.
(a); see also *College Hosp., Inc. v. Super. Ct.*
(1994) 8 Cal.4th 704, 721; *Smith v. Super. Ct.* (1992) 10 Cal.App.4th
1033, 1042.)

“Malice” is defined in section 3294, subdivision (c)(1), as
“conduct which is intended by the defendant to cause injury” or “despicable
conduct which is carried on by the defendant with a willful and conscious
disregard of the rights or safety of others.”

“Oppression” is defined in section 3294, subdivision (c)(2), as
“despicable conduct subjecting a person to cruel and unjust hardship in
conscious disregard of that person’s rights.”

“Fraud” is defined in section 3294, subdivision (c)(3), as “an intentional misrepresentation, deceit,
or concealment of a material fact known to the defendant with the intention on
the part of the defendant of thereby depriving a person of property or legal
rights or otherwise causing injury.”

The term “despicable conduct,” as used in subdivisions (c)(1) and

(c)(2), has been defined in the case

law as actions that are “base,” “vile,” or “contemptible.” (See, e.g., *College Hospital*, supra, 8 Cal.4th at p. 725; *Shade Foods, Inc. v. Innovative Products Sales &*

Marketing, Inc. (2000) 78 Cal. App. 4th

847, 891; see also CACI 3940 [“Despicable conduct is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people.”].)

A

plaintiff seeking punitive damages must include in the complaint “specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious.” (Today’s

IV, Inc. v. Los Angeles County Metropolitan Transit Authority (2022) 83

Cal.App.5th 1137, 1193; see also *Anschutz*

Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643; *Smith*, supra, 10 Cal.App.4th at pp. 1041-1042; 1 Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (2025), ¶ 6:158.).

“Punitive damages may not be pleaded generally.” (Today’s *IV, Inc.*, supra, 83 Cal.App.5th at p. 1193; see also *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055–56.)

Pleading negligence, gross negligence, or even recklessness is not sufficient. (*Dawes v. Super. Ct.* (1980) 111 Cal. App. 3d 82, 87.)

Rather, a plaintiff must allege facts demonstrating that the defendant intended to cause harm to plaintiff or “acted in such an outrageous and reprehensible manner that the jury could infer that [the defendant] knowingly disregarded the substantial certainty of injury to others.” (*Id.* at p. 90; see also, e.g., *American Airlines, Inc. v.*

Sheppard, Mullin, Richter & Hampton (2002) 96 Cal.App.4th 1017.)

Here, as set forth above, Plaintiff

sufficiently alleges fraudulent concealment by Defendant. Plaintiff also sufficiently alleges, at the pleading stage, ratification. The allegations in the Complaint are sufficient to support Plaintiff’s request to recover punitive damages.

The motion to strike is denied.

Conclusion

The

Court SUSTAINS IN PART and OVERRULES IN PART the demurrer filed by America Honda Motor Co. Inc.

The

Court SUSTAINS with leave to amend the demurrer of Defendant America Honda Motor Co. Inc. to the First and Fourth Causes of Action in the Complaint.

The

Court OVERRULES the demurrer of Defendant America Honda Motor Co. Inc. to the Second, Third, and Fifth Causes of Action in the Complaint.

The

Court DENIES the motion of Defendant America Honda Motor Co. Inc. to strike portions of the Complaint.

The

Court GRANTS LEAVE to Plaintiff Adolfo Bedolla Luna to file a First Amended Complaint to address the issues identified in this ruling by no later than August 31, 2026.

Counsel

are admonished to comply strictly with the statutory meet and confer requirements before filing a further demurrer or motion to strike.

Moving party is ordered to give notice.